

25STCV15857 25STCV15857

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV15857 Hearing Date: July 7, 2026 Dept: 510

No.

15 - Michael Ventura v. City of Los Angeles, et al.

Defendant

City of Los Angeles's Demurrer to Plaintiff's Third Amended Complaint

Defendant City of Los Angeles demurs

to the first and only cause of action for violation of Labor Code section

1102.5 alleged by Plaintiff Michael Ventura in his third amended complaint (TAC).

Labor

Code § 1102.5, commonly referred to as the whistleblower statute, provides protection for employees in reporting unlawful activities of their employers. To make a prima facie showing of a violation of 1102.5 a plaintiff must show they (1) engaged in a protected activity, (2) their employer subjected them to an adverse employment action, and (3) there is a causal link between the two. (McVeigh v. Recology San Francisco, (2013) 213 Cal.App.4th 443, 468 (McVeigh).)

Plaintiff

alleges sufficient facts to support a cause of action for whistleblower retaliation against Defendant City of Los Angeles. Plaintiff alleges that he believed his fellow employees' lack of fare evasion enforcement was itself illegal. The TAC states: "On or about May 15, 2024, Plaintiff disclosed information to the LAPD and the City of Los Angeles that LAPD Officers [sic] failure to enforce fare evasion was endangering employees and patrons who ride on the Los Angeles County Metropolitan Transit Authority ("MTA") buses and trains. Plaintiff reasonably believed that said disclosure constituted a

violation of [various regulations and ordinances]." (TAC, ¶ 24 [emphasis added].) These allegations of wrongful conduct by LAPD Officers, essentially his co-workers, were not included in prior versions of the complaint. This reasonable belief of an employee's illegal conduct constitutes protected activity as articulated in *McVeigh v. Recology San Francisco* (2013) 213 Cal.App.4th 443. (See id., at p. 471 ["We conclude . . . that Labor Code section 1102.5, subdivision (b) protects employee reports of unlawful activity by third parties such as contractors and employees, as well unlawful activity by an employer."].)

Defendant argues in reply that Plaintiff was not complaining about illegal conduct, but was merely disagreeing with internal policies about fare evasion enforcement. Further, Defendant argues governmental immunity would protect it from being liable for any alleged failure to enforce a law. These arguments are irrelevant here. To state a claim under the whistleblower statute, Plaintiff needs to allege "only that he or she reasonably believed that there was a violation of a statute, rule, or regulation." (*Nejadian v. County of Los Angeles* (2019) 40 Cal.App.5th 703, 719.) " '[A]n employee need not prove an actual violation of law; it suffices if the employer fired him for reporting his "reasonably based suspicions" of illegal activity.' " (*Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1345.) Thus, Plaintiff's allegations that he reasonably believed his fellow employees' conduct violated the law is sufficient at the pleading stage.

Disposition

Defendant

City of Los Angeles's demurrer to Plaintiff Michael Ventura's third amended complaint is overruled. Defendant is to file its answer to the third amended complaint within 21 days.